



Racial Differences in Interpretations of Standards of Proof and Jury Impartiality in the U.S. Criminal Justice System

Michael A. Hansen¹ · John C. Navarro²

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Abstract

This study explores racial differences in public perceptions of key standards of proof, specifically “beyond a reasonable doubt” and “preponderance of the evidence,” as well as evaluations of impartiality toward juries with varying racial compositions in the U.S. criminal justice system. Using data from 1,193 respondents, we find that White and Black respondents differ in their interpretations of guilt and liability: Black respondents generally apply stricter qualitative views of “beyond a reasonable doubt” and more lenient qualitative interpretations of “preponderance of the evidence,” and lower quantitative thresholds than White respondents for both standards. Black respondents also expressed greater confidence in the impartiality of racially diverse and all-Black juries than in all-White juries. These patterns suggest that White and Black respondents perceive standards of proof and jury impartiality through distinct racial lenses.

Keywords Standards of proof · Jury composition · Racial differences · Criminal justice · Beyond a reasonable doubt · Preponderance of the evidence

✉ Michael A. Hansen
michael.hansen@utu.fi

John C. Navarro
jxn044@shsu.edu

¹ Department of Philosophy, Contemporary History, & Political Science / Political Science, University of Turku/Turun Yliopisto, Turku 20014, Finland

² Department of Criminal Justice and Criminology, Sam Houston State University, Huntsville, TX 77341, USA

Introduction

Jury trials occupy a foundational role in American criminal procedure, serving as a benchmark of procedural fairness against which other methods of case disposition are measured (Bibas, 2004, 2016). This fairness ideal, often characterized as the gold standard of adjudication, depends on core principles of participation and public judgment (Bibas, 2012). Why should we investigate how jurors exercise this participation? Jurors play a decisive role in determining legal outcomes, interpreting concepts such as “beyond a reasonable doubt” and “preponderance of the evidence” with minimal legal guidance (Saxton, 1998). The juridical consensus holds that these standards of proof should remain undefined for jurors, leaving interpretations up to individual understanding (Hemmens et al., 1997; Newman, 2019; Saxton, 1998). These interpretations and subsequent deliberations may be shaped by jurors’ lived experiences and institutional trust (Farrell et al., 2013; Hakstian et al., 2022). For example, non-White Americans reported lower confidence in the fairness and legitimacy of courts than White Americans, revealing racial disparities in perceptions of court legitimacy (Farrell et al., 2013; National Center for State Courts, 2024). Likewise, Black jurors in criminal trials were less likely than White jurors to vote guilty during initial deliberations, suggesting a baseline skepticism toward state prosecution (Garvey et al., 2004). These patterns raise the possibility that jurors from different racial backgrounds may enter the courtroom with distinct expectations and understandings regarding proof and fairness.

Despite decades of jury research, empirical attention has disproportionately focused on how the public interprets “beyond a reasonable doubt” in criminal trials, neglecting “preponderance of the evidence,” even though civil trials comprise nearly one-fourth of all trials (Hannaford-Agor et al., 2024). These studies often relied on student or localized samples (Dhami, 2008; Kagehiro & Stanton, 1985; Simon, 1970; Simon & Mahan, 1971; Woody & Greene, 2012). For example, Simon and Mahan (1971) found that university students, judges, and jurors assigned different probability thresholds to the same legal standards, while Kagehiro and Stanton (1985), using undergraduate samples, found that quantified definitions of standards of proof shifted verdicts as intended but unquantified legal definitions did not. The studies’ dated nature has prompted calls to diversify samples to strengthen the robustness of jury research (Bornstein et al., 2017). Later research has begun to address these empirical critiques (White & Cicchini, 2019); however, no single study has explored racial variation in the interpretation of standards of proof, particularly with a sample designed to be representative of key sociodemographics. If racial groups hold different interpretations, this may help explain why Black Americans are less likely to vote for guilt on the first ballot compared to their White counterparts (Farrell et al., 2013; Garvey et al., 2004).

Drawing on an online national sample of 1,193 jury-eligible adults, representative of key sociodemographics, this study investigates how the public interprets standards of proof and evaluates jury impartiality across different racial compositions. Specifically, we explore (1) whether interpretations of “beyond a reasonable doubt” and “preponderance of the evidence” vary by race, and (2) how racially homogenous (i.e., all-White, all-Black) versus diverse juries are perceived in terms of impartiality.

Since prior research has not established a theoretical or empirical basis for whether racial groups interpret standards of proof differently in criminal versus civil contexts, we avoided framing our statements about jury impartiality across racial compositions within a specific trial type. For parsimony, we focused on generalized perceptions of jury fairness across racial compositions to avoid confounding effects related to trial context. We begin by providing an overview of the relevant literature on interpretations of standards of proof and evaluations of jury impartiality. We then frame our discussion with two complementary theoretical frameworks, reinforcing the idea that systematic variation in how standards of proof are interpreted arises from sociocultural worldviews and how racial identity structures perceptions of fairness within institutions such as courtrooms.

Literature Review

Empirical Data – Standards of Proof

One of the earliest legal articulations of “beyond a reasonable doubt” traces back to the high-profile 1850 trial of Harvard chemistry professor John Webster, who was charged with the murder of Dr. George Parkman (American Experience, 2003). As no one saw the murder firsthand, the judge in *Commonwealth v. Webster* (1850, 320) defined “beyond a reasonable doubt” as the point at which, after comparing and considering all the evidence, jurors felt “an abiding conviction, a moral certainty, of the truth of the charge” (American Experience, 2003). Although this phrasing has become canonical, with *In re Winship* (1970) establishing “beyond a reasonable doubt” as the official standard of proof in criminal trials, some state and federal appellate circuit courts prefer the legal phrase undefined, instructing trial judges not to explicitly describe “reasonable doubt” (Hemmens et al., 1997; Newman, 2019). Voir dire questions defer the definition of standards of proof to jurisdictional discretion, and when judges do provide definitions or explanations, these formulations are often criticized as ambiguous, inconsistent, and tautological (*Cage v. Louisiana*, 1990; Hemmens et al., 1997; Marinakis & Kansky, 2025; Newman, 2019; *Victor v. Nebraska*, 1994). Imprecise definitions of legal standards risk jurors relying on preconceived notions, potentially weakening protection for the accused if the threshold is set too low or leading to overprotection if set too high (Newman, 2019). Experimental research with jury-eligible U.S. adults found that those who begin in a hypothetical trial with a presumption of guilt are more likely to maintain that position through deliberation, suggesting that verdicts are shaped by prior beliefs (Scurich & John, 2017). If undefined standards allow prior beliefs to shape interpretations of guilt, racial differences in those beliefs may similarly shape how “beyond a reasonable doubt” is understood. As previously mentioned, Black jurors have been found to vote not guilty at higher rates than White jurors in criminal trials (Garvey et al., 2004). Such differences in thresholds for guilt, shaped by racialized beliefs about proof, carry important implications for how equitable adjudication is perceived by White and Black Americans when juries vary in racial composition.

Empirical Data – Jury Selection

The integrity of the justice system is contingent upon the fair and nondiscriminatory selection of jurors that broadly represent one's peers, an ideal repeatedly discussed at the SCOTUS level (e.g., *Batson v. Kentucky*, 1986; *Taylor v. Louisiana*, 1975). As it pertains to race, in *Batson v. Kentucky* (1986), the Court ruled that prosecutors cannot strike jurors based on race; however, there is no constitutional expectation that empaneled jurors mirror the racial backdrop of their respective communities. Older research shows that both White and Black Americans support racially representative juries that resemble the community, with Black respondents more likely to agree that verdicts from racially diverse juries are fairer than those from single-race juries (Fukurai & Davies, 1997). Yet, we know little about specific preferences for all-Black juries, likely because such juries are rarely studied given their infrequency (see Bergold & Kovera, 2022; see Ellis & Diamond, 2003). We build on this scholarship by investigating how jury impartiality is perceived across three racial compositions – all-White, all-Black, and racially diverse – within the context of a generalized trial, to mitigate confounding effects and understand how evaluations of each composition differ among White and Black Americans.

Theoretical Frameworks

We drew insight from two theoretical frameworks to help explain (racial) differences in perceptions of standards of proof and the racial composition of juries: cultural cognition theory and critical race theory. Cultural cognition theory is employed to examine how cultural values shape the interpretation of evidence. Critical race theory, as a dynamic theory with recurring themes (Crenshaw, 2011; Crenshaw et al., 1995; Delgado & Stefancic, 1993; Gonzales Rose, 2017), provides additional theoretical context by explaining how racialized experiences shape interpretations of legal justice and jury deliberations.

Cultural Cognition Theory

Cultural cognition theory posits that individuals interpret information through the cultural values embedded in their group identities and social affiliations (Braman, 2010; Braman & Kahan, 2009; Kahan, 2012). People selectively interpret information (such as evidence) that aligns with the norms and beliefs of the groups they belong to, including cultural backgrounds (e.g., race/ethnicity, class), ideological leanings, and/or political affiliations. As a result, individuals may perceive identical information or events differently, motivated in part to interpret them in ways that are consistent with and reinforce pre-existing values rooted in their respective cultural milieus.

This theoretical framework has been useful in explaining how jurors (and jury-eligible individuals) culturally filter legal information when applying standards of proof (Braman, 2010; Braman & Kahan, 2009; Kahan et al., 2009; see Bornstein & Greene, 2011). For instance, Kahan et al. (2009) showed that jurors' cultural values shaped their interpretation of "beyond a reasonable doubt" in a trial involving a police officer's use

of deadly force to stop a fleeing motorist. Those with hierarchical and individualistic values – often associated with more conservative/traditional viewpoints – were more likely to justify the officer’s actions, viewing the fleeing motorist as a risk to public safety. Conversely, individuals with more egalitarian and communitarian values – typically more progressive/liberal – were more likely to blame the officer for escalating the situation, seeing the officer’s actions as unjustified given the minimal threat posed by the fleeing motorist. This division conveys how jurors’ cultural values influence their interpretation of the same event and what constitutes the behavior of a “reasonable person.” In a more recent example, Lynch and Laguna (2025) observed similar patterns in mock jury deliberations of evidence gathered by law enforcement for a drug conspiracy criminal trial. Black jurors not only led discussions unpacking the meaning of “beyond a reasonable doubt” and whether it was satisfied, but also grounded their interpretations in lived experiences with police. Their commanding role in clarifying the meaning of this standard during deliberations suggests how racial identity can influence both the threshold and its application (particularly in group settings). Although theoretical attention has primarily focused on “beyond a reasonable doubt,” leaving “preponderance of the evidence” comparatively understudied, this theory provides a helpful lens for anticipating differences in how both standards are interpreted across racial (and cultural) groups.

Critical Race Theory

Critical race theory offers two central claims relevant to this study. First, racism is not an aberration but a structural feature of American institutions, including the criminal justice and legal systems, reproduced through facially neutral rules and practices rather than only through individual prejudice (Bonilla-Silva, 2022; Crenshaw, 2011; Crenshaw et al., 1995; Gonzales Rose, 2017). This structural pattern is well documented in the broader criminal justice literature. Race, rather than crime rates alone, has shaped sentencing and drug enforcement policy (Tonry, 1995), and mass incarceration has functioned as a mechanism of racialized social control with roots in the legacy of slavery (Alexander, 2010; Davis, 2003). Second, critical race theory challenges the neutrality of colorblind legal standards, arguing that such standards often encode the perspective of the dominant racial group as the universal or “reasonable” one (Astrada & Astrada, 2017; Gonzales Rose, 2017). Applied to standards of proof, these claims suggest that interpretations of standards of proof are not race-neutral, as they reflect White-centric cultural norms. For instance, a White judge, whose articulation of “beyond a reasonable doubt” led to the conviction of a White Harvard chemist by what was most likely an all-White jury, is a legal construction of White legal epistemology (American Experience, 2003; see Frampton, 2023). Thus, the reasonable person reflects a culturally specific, predominantly White perspective (Astrada & Astrada, 2017; Gonzales Rose, 2017), with a jury as “a hallmark of Anglo-American legal procedure” (Bornstein & Greene, 2011: 65). Contemporary evidence from a 2023 juror survey supports critical race theory’s claim that the criminal justice and legal systems are racialized, as White Americans are perceived as receiving greater leniency while Black Americans face harsher treatment (Jackson & Lohr, 2023).

The structural exclusion described above extends to the composition of the jury itself. The courtroom is a White space with a track record of historical and ongoing

racial exclusion (Carlin, 2016; e.g., *Batson v. Kentucky*, 1986; *Flowers v. Mississippi*, 2016; 2019; *Norris v. Alabama*, 1935; *Peters v. Kiff*, 1972; *Powers v. Ohio*, 1991; *Strauder v. West Virginia*, 1880; *Swain v. Alabama*, 1965). Consider the legitimate legal tactic of peremptory challenges handed out in *Flowers v. Mississippi* (2019), where the same White prosecutor excluded 41 out of 42 prospective Black jurors across six trials. This repeated exclusion led to guilty verdicts and death sentences for Curtis Flowers, a Black man, by all-White and majority-White juries, whereas more racially diverse juries deadlocked, prompting judges to declare mistrials. The stark contrast in guilty verdicts illustrates how the racial composition of juries can shape outcomes. It also reveals the risks of a courtroom historically structured as a White space, where the exclusion of Black jurors can constrain how reasonableness and proof are interpreted (Astrada & Astrada, 2017; Gonzales Rose, 2017). Taken together, these claims frame testable expectations that White respondents reflect a color-blind orientation of justice, perhaps downplaying race in their interpretations (of proof and) jury impartiality, while Black respondents, drawing from race-conscious perspectives rooted in historical exclusion, may view courtrooms as institutional structures reinforcing racial hierarchies (Bonilla-Silva, 2022; Carlin, 2016).

Hypotheses

Since White and Black jurors may approach standards of proof through racialized experiences and sociocultural understandings, we argue that what constitutes “beyond a reasonable doubt” and “preponderance of the evidence” will be perceived differently. This claim suggests that standards of proof are culturally situated, which forms the basis of our first hypothesis. We do not specify a uniform direction for this hypothesis, as critical race theory does not predict that racialized experience would push interpretations of both standards the same way. Racialized experience could plausibly produce stricter interpretations of one standard while encouraging more lenient interpretations of the other:

H₁ There will be significant differences between White and Black respondents in their interpretations of standards of proof related to determining guilt and liability.

After analyzing interpretations of each standard of proof, we assess evaluations of jury composition varying by race. Fairness, like the interpretation of “beyond a reasonable doubt” and “preponderance of the evidence,” is shaped by lived experiences of race and structural positioning. While evaluations of all-Black juries have not been tested based on our reading of the literature (see Bergold & Kovera, 2022), the historical exclusion and marginalization of Black jurors allows critical race theory to offer a clearer directional prediction. Here, Black respondents’ distinct positioning relative to the criminal justice system should generate greater confidence in juries that are racially diverse or same-race. Our second hypothesis is as follows:

H₂ Black respondents will express greater confidence than White respondents in the impartiality of racially diverse and all-Black juries.

Data

This study gathered responses from 1,193 adults aged 18 and older residing in the U.S., focusing on public perceptions of standards of proof and trial jury composition in the criminal and civil justice system. Data collection took place on July 18, 2024. Participants provided informed consent and had the option to skip any question or exit the survey at any time. Respondents were compensated at an average rate of \$10.00 per hour for their participation. On average, the survey took 13 min and 34 s to complete, accounting for any pauses or interruptions. Sam Houston State University's institutional review board approved the study.

The sample was recruited through Prolific, which generated an online panel designed to be representative of U.S. adults, with stratification based on age, gender, and political affiliation – using the platform's representative sample option. To ensure data accuracy, sociodemographic responses were cross-referenced with pre-existing information from the recruitment firm (i.e., Prolific), with the data matching perfectly. Specifically, Prolific's participant profile data for age, gender, and political affiliation, the variables used for stratification, were automatically exported and merged with survey responses to verify consistency between platform records and self-reported answers. After conducting descriptive and binary statistical tests, regression models were employed to further explore the relationships between the variables.

Dependent Variables and Method

The dependent variables in this study assess public perceptions of standards of proof and jury composition, as detailed in Table 1. In total, this study includes eight dependent variables: five assessing interpretations of standards of proof and three assessing perceptions of impartiality. The first five questions examine how respondents interpret legal definitions of “beyond a reasonable doubt” and “preponderance of the

Table 1 Standard of Proof Questions and Statements of Perceived Impartiality Across Jury Racial Compositions

“Beyond A Reasonable Doubt” Questions

- (1a) Does the “beyond a reasonable doubt” standard indicate that there is no possibility that someone else committed the crime?
(2a) Does the “beyond a reasonable doubt” standard indicate that it is more likely than not that the defendant committed the crime?
(3a) Does the standard “beyond a reasonable doubt” indicate that it is a certainty that the defendant committed the crime?

“Preponderance of the Evidence” Questions

- (1b) Does “preponderance of evidence” indicate that there are numerous pieces of evidence of guilt?
(2b) Could “preponderance of evidence” exist if there is only one incontestable piece of evidence present?

Views on Juries Statements

- An all-White jury can deliver an unbiased ruling in court.
A racially diverse jury can deliver an unbiased ruling in court.
An all-Black jury can deliver an unbiased ruling in court.
-

evidence.” Specifically, the questions asked whether “beyond a reasonable doubt” means (1a) no possibility that someone else committed the crime, (2a) it is more likely than not that the defendant is guilty, or (3a) it indicates absolute certainty of guilt. For “preponderance of the evidence,” the questions asked whether the standard of proof means (1b) there are numerous pieces of evidence of guilt or (2b) if it could be satisfied by just one incontestable piece of evidence.¹ Respondents were presented with a binary choice as either no (0) or yes (1), simulating the way juries must decide on questions of guilt/liability. Since the choice is binary, we utilized logistic regression in this analysis. Each standard of proof question excludes discussions of case materials and was intentionally race-neutral to avoid racially priming respondents, ensuring that interpretations of “beyond a reasonable doubt” and “preponderance of the evidence” were not confounded by other factors.

The remaining three questions examine respondents’ views on the impartiality of different jury racial compositions: an all-White jury, an all-Black jury, and a racially diverse jury. Respondents received these three questions without the ability to revisit their earlier answers, preventing them from reevaluating their previous responses once race was introduced as a factor. For these questions, respondents indicated their level of agreement on a scale from 0 (greatly disagree) to 10 (greatly agree), with 5 representing a neutral stance. As the dependent variables in these questions were continuous, linear regression was used to model the relationships between predictors and respondents’ views on jury impartiality.²

Independent Variables

Descriptive statistics and bivariate tests provide initial insights into public perceptions of standards of proof and jury composition. To further investigate these perceptions, regression models were estimated to account for key individual-level predictors and the variables representing interpretations of standards of proof. The empirical analysis includes several independent variables commonly controlled for in American public opinion studies. These include sociodemographics such as age, gender, race, income, and education.

Additionally, the analysis incorporates two attitudinal variables. First, respondents’ self-reported political ideology on a left-right scale is examined, as prior research suggests that liberals may interpret standards of proof through the lens of due process, while conservatives may be more punitive, in part due to their greater endorsement of crime control values (Pyo, 2024). Second, partisan identification is

¹ While our standard of proof for civil trials omits the definite article “the” to maintain a more casual tone, we do not believe this omission substantively affected the results given the public’s limited knowledge of judicial processes, particularly civil trial matters (Saxton, 1998). However, we encourage future scholars to investigate whether the absence of a definite article influences interpretation.

² As a robustness check, we also estimated ordered logistic regression models for the three 0–10 dependent variables in Table 5, given that these variables, while treated as continuous, comprise only 11 discrete response categories. Results were substantively indistinguishable from the OLS estimates presented here. We report OLS models in the main text because ordered logistic regression requires estimating a separate threshold parameter for each adjacent category boundary (e.g., 0–1, 1–2, 2–3, etc.), which, given the number of predictors and observations, is not well suited to the current data.

considered a predictor variable. Partisanship has increasingly become a strong determinant of attitudes toward many issues, including perceptions of legal procedures and fairness (St. Louis & Petersen, 2024). Respondents who indicated that they lean toward a political party were coded as partisans of that party to avoid inflating the impact of partisanship. Variable coding and descriptive statistics for all variables used in the analysis are provided in Appendices A and B.

Results

Descriptive Statistics

Before addressing the study's hypotheses, to ensure content validity as prior work often recruited from localities or universities, we asked the respondents to quantify certainty of guilt/liability (from 0 to 100% in 10% increments, with 50% as the default) under the two standards of proof often used in criminal and civil trials: "beyond a reasonable doubt" and "preponderance of the evidence." Respondents, on average, assigned 82.88% and 71.32% guilt/liability for "beyond a reasonable doubt" and "preponderance of the evidence" standards, respectively. On average, White respondents assigned 84.20% guilt under the "beyond a reasonable doubt" standard, compared to 76.49% for Black respondents. For the "preponderance of the evidence" standard, White respondents assigned 72.47% guilt/liability, while Black respondents assigned 66.65%.

These descriptive statistics show themes that set the tone for the remaining study's results. First, we observe an empirical consensus that the American public holds an uncrystallized definition of "beyond a reasonable doubt" (Horowitz & Kirkpatrick, 1996; Saxton, 1998; Simon & Mahan, 1971; White & Cicchini, 2019), in addition to "preponderance of the evidence" (Simon & Mahan, 1971). Second, we demonstrate racial differences in the level of certainty of guilt/liability that each racial group associates with the standards typically applied in criminal and civil trials. In the next descriptive sections, statistics and bivariate regression models, each testing the relationship between a single dependent variable and respondent race, provide initial insights into public perceptions of standards of proof and jury composition.

Interpretations of Standards of Proof by Race

Table 2 presents descriptive statistics showing the level of agreement with qualitative interpretations of the "beyond a reasonable doubt" and "preponderance of the evidence" standards, disaggregated by respondent race. Of the five qualitative interpretations examined in Table 2, two demonstrated statistically significant racial differences. The top half of the table focuses on the three "beyond a reasonable doubt" questions. Only one interpretation was statistically significant ($p < 0.05$): 59.16% of Black respondents equated the standard with certainty of guilt, compared to 48.49% of White respondents. For the interpretation that "beyond a reasonable doubt" means there is no possibility that someone else committed the crime, 51.83% of Black respondents agreed, compared to 44.08% of White respondents. Similarly, 75.92% of

Table 2 Descriptive Statistics by Respondent Race – Proportion Who Indicated “Yes”

Beyond a Reasonable Doubt	White	Black	Sample
No possibility that someone else committed the crime?	44.08%	51.83%	45.23%
More likely than not that the defendant committed the crime?	80.97%	75.92%	79.92%
A certainty that the defendant committed the crime?	48.49%	59.16%*	51.12%
Preponderance of the Evidence	White	Black	Sample
Numerous pieces of evidence of guilt?	84.22%	73.30%**	81.83%
Only one incontestable piece of evidence present?	51.51%	57.59%	52.61%

Notes. * $p < 0.05$. ** $p < 0.01$

Table 3 Descriptive Statistics by Respondent Race – Mean Level of Agreement on Perceived Impartiality Across Jury Racial Compositions

Views on Juries	White	Black	Sample
All-White jury.	3.01	3.60**	3.11
Racially diverse jury.	4.05	5.88**	4.45
All-Black jury.	2.98	4.72**	3.30

Notes. Values range from 0 (greatly disagree) to 10 (greatly agree)

* $p < 0.05$. ** $p < 0.01$

Black respondents and 80.97% of White respondents agreed that the standard means it is more likely than not that the defendant committed the crime. While these two interpretations also showed racial differences, they were not statistically significant.

The bottom half of Table 2 presents racial differences across the two questions related to the “preponderance of the evidence” standard. One interpretation was statistically significant ($p < 0.01$): 84.22% of White respondents agreed that the standard requires numerous pieces of evidence to establish guilt/liability, compared to 73.30% of Black respondents. For the second interpretation, 57.59% of Black respondents and 51.51% of White respondents agreed that the standard could be satisfied by a single incontestable piece of evidence. While this also reflected a racial difference, the result was not statistically significant.

Views on Jury Impartiality by Race

Table 3 shows the mean levels of agreement, by race, on the perceived ability of different jury racial compositions to deliver unbiased rulings. Black respondents, on average, expressed significantly higher agreement in the impartiality of an all-White jury (3.60) compared to White respondents (3.01). However, the mean level of agreement for both groups leaned towards disagreement, and the substantive difference between the two racial groups of respondents was notably less than in the other statements about racially diverse and all-Black juries. Specifically, Black respondents showed a much higher level of agreement (5.88) regarding the potential for unbiased rulings from racially diverse juries compared to White respondents (4.05). Here, Black respondents leaned toward agreement, while White respondents leaned toward disagreement. Finally, Black respondents (4.72) had a higher level of agreement that an all-Black jury could deliver an unbiased ruling than White respondents (2.98).

The largest agreement gap between racial groups appeared in evaluations of an all-Black jury. These results indicate racial differences in perceptions of jury impartiality and composition. Black respondents generally expressed greater confidence in both racially diverse and same-race juries, while White respondents tended to favor racially diverse juries over racially homogenous ones, regardless of the racial majority. Overall, responses clustered between disagree and neutral when assessing the impartiality of juries with different racial compositions, suggesting general uncertainty, particularly among White respondents, about whether juries can deliver unbiased verdicts.

Regression Analysis

Interpretations of Standards of Proof by Race

In Table 4, outputs are presented for models predicting how respondents interpret the standards of proof, “beyond a reasonable doubt” and “preponderance of the evidence,” to determine whether racial differences persist when controlling for other variables of interest. Regarding “beyond a reasonable doubt,” Black respondents were more likely than White respondents to interpret this standard as meaning there is no possibility that someone else committed the crime (around 10% more likely when calculating predictions based on model output). The finding indicates a stricter interpretation of criminal guilt. Similarly, Black respondents were more likely (around 12%) to view “beyond a reasonable doubt” as implying absolute certainty of the defendant’s guilt, again, demonstrating a tendency toward a more stringent understanding of this legal concept. However, there were no significant differences between White and Black respondents in their interpretation of “beyond a reasonable doubt,” meaning it is more likely than not that the defendant committed the crime, suggesting some commonality in views across these two racial groups for this standard expression. For the “preponderance of the evidence” standard, Black respondents were less likely (around 10%) than White respondents to believe that numerous pieces of evidence are required to establish civil guilt/liability, reflecting a more lenient interpretation of this standard. However, there was no significant racial difference in the belief that a single incontestable piece of evidence could satisfy the “preponderance of the evidence” threshold.

Views on Jury Impartiality by Race

The regression results in Table 5 demonstrate clear racial differences in evaluations of the jury’s perceived ability to deliver unbiased rulings, varying by racial composition. Black respondents were, on average, more likely than White respondents to believe that an all-White jury could provide an impartial verdict, with the difference amounting to approximately four-fifths of a point. Racial differences were even more pronounced when considering racially diverse and all-Black juries. Black respondents showed statistically significant and substantively greater agreement in the impartiality of these two jury racial compositions compared to White respondents. The difference in agreement for racially diverse and all-Black juries was nearly twice as large as the gap for all-White juries, with a margin of nearly two points.

Table 4 Logit Models Predicting Views on “Beyond a Reasonable Doubt” and “Preponderance of the Evidence”

	Beyond a Reasonable Doubt			Preponderance of the Evidence	
	No One Else Possible but Defendant	More Than Likely Defendant	A Certainty Defendant	Numerous Pieces of Evidence of Guilt	One In-contestable Piece of Evidence
Constant	0.31 (0.27)	1.28** (0.34)	0.45 (0.28)	0.29 (0.34)	-0.75** (0.27)
Age	-0.01* (0.00)	0.01* (0.00)	-0.01** (0.00)	0.02** (0.01)	0.01** (0.00)
Woman	0.27* (0.12)	0.08 (0.15)	0.37** (0.12)	0.28 (0.15)	-0.04 (0.12)
Race - Black	0.39* (0.17)	-0.17 (0.20)	0.50** (0.17)	-0.61** (0.20)	0.29 (0.17)
Race - Hispanic	-0.01 (0.30)	0.00 (0.37)	0.65* (0.32)	0.18 (0.41)	0.12 (0.30)
Race - Asian	-0.12 (0.26)	0.42 (0.35)	0.07 (0.26)	-0.17 (0.32)	0.21 (0.26)
Race - Other	-0.04 (0.36)	-0.57 (0.39)	-0.26 (0.36)	-0.46 (0.43)	0.24 (0.36)
Education	-0.19** (0.07)	-0.18* (0.09)	-0.15* (0.07)	0.08 (0.09)	0.15* (0.07)
Income	0.01 (0.02)	0.00 (0.02)	0.01 (0.02)	0.00 (0.02)	-0.03 (0.02)
Political Ideology	0.03 (0.03)	-0.00 (0.04)	0.04 (0.03)	0.01 (0.04)	0.01 (0.03)
Party ID - Independent	0.04 (0.17)	0.08 (0.20)	0.07 (0.17)	0.25 (0.22)	-0.09 (0.17)
Party ID - Republican	0.12 (0.22)	0.19 (0.26)	0.12 (0.22)	-0.06 (0.28)	0.04 (0.22)
Observations	1,193	1,193	1,193	1,193	1,193
Log Likelihood	-806.6	-589.8	-803.2	-544.0	-814.8
Akaike Inf. Crit.	1,637.2	1,203.6	1,630.5	1,112.1	1,653.6

Notes. * $p < 0.05$. ** $p < 0.01$

Standard errors in parentheses

Discussion

The findings from this study highlight racial differences in public interpretations of key standards of proof, specifically, “beyond a reasonable doubt” and “preponderance of the evidence,” as well as evaluations of jury impartiality across varying racial compositions. Using a sample of 1,193 jury-eligible U.S. adults, we tested multiple legal definitions of criminal and civil standards of proof. We found that slight changes in the wording of standards of proof altered interpretations within and across racial groups, consistent with cultural cognition theory. The study also found that racially diverse juries were perceived as the most impartial than all-White or all-Black juries, with Black respondents showing same-race preference that was absent among White

Table 5 Models Predicting Views on Jury Racial Composition and Perceived Impartiality

	All-White	Racially Diverse	All-Black
Constant	1.66** (0.37)	4.83** (0.38)	2.47** (0.35)
Age	0.00 (0.01)	-0.01 (0.01)	0.01 (0.01)
Woman	-0.46** (0.16)	-0.01 (0.16)	-0.10 (0.15)
Race - Black	0.81** (0.22)	1.94** (0.23)	1.90** (0.21)
Race - Hispanic	0.07 (0.41)	0.69 (0.42)	0.44 (0.39)
Race - Asian	0.31 (0.35)	0.95** (0.36)	0.49 (0.34)
Race - Other	0.36 (0.48)	1.14* (0.50)	0.87 (0.46)
Education	-0.07 (0.09)	-0.29** (0.09)	-0.09 (0.09)
Income	0.05* (0.03)	0.03 (0.03)	0.02 (0.02)
Political Ideology	0.25** (0.04)	0.05 (0.04)	0.05 (0.04)
Party ID - Independent	0.10 (0.22)	-0.41 (0.23)	-0.19 (0.22)
Party ID - Republican	0.36 (0.29)	0.08 (0.30)	0.44 (0.28)
Observations	1,193	1,193	1,193
R ²	0.11	0.08	0.08
Adjusted R ²	0.10	0.07	0.07

Notes. * $p < 0.05$. ** $p < 0.01$

Standard errors in parentheses

respondents, a pattern consistent with critical race theory's account of racialized legal consciousness.

Our analysis shows three patterns in how the public interpreted the study's five legal definitions of "beyond a reasonable doubt" and "preponderance of the evidence." One theme is that the sample held lower thresholds for "beyond a reasonable doubt" but higher thresholds for "preponderance of the evidence" (see White & Cicchini, 2019). A second theme is that, although respondents correctly recognized "beyond a reasonable doubt" as the stricter standard of proof, the gap between the two standards was relatively small. This pattern raises broader concerns about how the standards of proof are applied in criminal and civil trials. The final theme concerns racial differences in how jury-eligible individuals interpret two popular standards. Even though race was not explicitly referenced in the legal definitions, Black respondents tended to apply more stringent scrutiny to qualitative interpretations of "beyond a reasonable doubt" and more lenient thresholds to "preponderance of the evidence," yet their quantitative thresholds were lower than those of White respon-

dents for both standards. These patterns suggest that the public's understanding of standards of proof depends not only on whether they are expressed qualitatively or quantitatively, but also on individual racial identity. While these racial differences reached statistical significance in only two of the five definitions tested, they remain meaningful because they indicate that potential jurors bring different interpretations of legal thresholds into the jury service, which can influence deliberations and trial outcomes.

The findings on the perceived impartiality of juries varying by racial composition complement the results on standards of proof, identifying racial differences that notably included all-Black juries for comparative context. Racially diverse juries received the highest ratings in perceived impartiality. They can enhance trial legitimacy, particularly when a conviction is likely, as racially homogenous juries were perceived as less fair when delivering guilty verdicts (Ellis & Diamond, 2003; Fukurai & Davies, 1997). White respondents may associate racial diversity with procedural fairness, whereas Black respondents may value racially diverse juries as a corrective to historical and ongoing racial discrimination. Black respondents also displayed a same-race affinity effect, rating all-Black juries as more impartial, while White respondents did not show such preferences. Across all three jury racial compositions, respondents leaned toward disagreement that juries could deliver unbiased verdicts, suggesting a general lack of confidence in the justice system. Here, White respondents displayed narrower impartiality ranges, rating all-White and all-Black juries nearly identically, suggesting social desirability concerns when asked explicitly about race, weaker connection to systemic racial discrimination, or the belief that race plays little role in legal spaces (Crenshaw et al., 1995; Gonzales Rose, 2017; Sommers & Ellsworth, 2000; Stevenson et al., 2017). Given legitimacy deficits in perceptions of courts among non-White/Black Americans (Farrell et al., 2013; National Center for State Courts, 2024), juries may be perceived as more accountable to peers than institutional elites, which may help explain why Black respondents broadly rated juries as more impartial than White respondents. These patterns complicate the notion of jury trials as the fairness gold standard of adjudication (Bibas, 2004, 2012, 2016), since perceptions of impartiality clearly diverge along racial lines rather than reflecting a shared institutional ideal. This divergence is consistent with a broader body of scholarship documenting that facially race-neutral criminal justice institutions can nevertheless produce racialized experiences and outcomes (Alexander, 2010; Davis, 2003; Tonry, 1995); jury impartiality may therefore be no more immune to these structural patterns than sentencing and enforcement.

Overall, the results suggest that Black respondents may view the legal system through a different lens, one shaped by lived experience and historical context, in which jury racial composition plays a critical role in ensuring fairness. These patterns also reinforce the idea that the concept of a “jury of your peers” holds heightened significance when racial groups differ in how they interpret legal standards and define impartiality. Overall, these racial differences in perception may shape broader trust in the legal system and its ability to deliver just outcomes.

Future Directions

Below, we discuss the limitations of our findings and outline directions for future research to better understand racial gaps in interpretations of standards of proof and perceptions of jury impartiality across different racial compositions. While the current study used race-neutral legal definitions to establish baseline interpretations of standards of proof, future research could incorporate defendant characteristics. Conjoint experiments, in particular, provide a useful method for isolating the effects of attributes such as the defendant's race or ethnicity, offense type, and applicable standard of proof. These approaches would extend existing evidence that jurors may apply different evidentiary thresholds depending on the defendant's racial background (Anwar et al., 2012).

Drawing on critical race theory, intersectional frameworks can further illuminate how race, class, and other factors interact to shape public perceptions of guilt, liability, and fairness (Crenshaw, 1991, 2011; Delgado & Stefancic, 1993). Although one objective of the current study was to address a previous limitation in generalizability by generating a sample representative of key sociodemographics, subsequent research could deepen intersectional insights by oversampling Black Americans or by distinguishing between respondents who identify as White Hispanics and those who identify as non-White Hispanics. Although this study is, to our knowledge, the first to investigate racial differences in interpretations of standards of proof, alongside evaluations of all-Black juries with all-White and racially diverse juries, replication is essential to assess the robustness of these findings. Future work should determine whether the observed racial differences persist after accounting for respondents' experiences with the justice system and perceptions of system fairness. More broadly, although critical race theory emphasizes the structural significance of race in American legal institutions, the observed differences may also reflect other group identities and social affiliations, as posited by cultural cognition theory.

The findings also suggest several directions for future research, particularly in sample design. While all respondents were jury-eligible under U.S. law, some may have had legal disqualifications. Future research could improve generalizability by distinguishing between those formally eligible and ineligible for jury duty. Comparisons between individuals with and without jury experience may offer important insights (see Bornstein et al., 2017). Jurors who have served in criminal and civil trials are unique in that they collectively have more trust in attorneys, the judiciary, and law enforcement than the general population (Jackson & Lohr, 2023). Future work could investigate whether institutional trust and perceptions of procedural justice moderate racial differences in interpretations of proof and jury impartiality, as well as whether these relationships differ across criminal and civil trial contexts.

Finally, while national samples are useful for gauging broad public attitudes toward legal standards and juries, local samples offer the advantage of capturing community-specific experiences and interpretations of justice. This is particularly relevant given that slight changes in legal phrasing can affect public understanding, and voir dire templates omit standardized definitions of "beyond a reasonable doubt"

and “preponderance of the evidence” to accommodate jurisdictional preferences (Marinakakis & Kansky, 2025). As different communities may interpret these standards through distinct social and historical lenses, especially across racial lines (Gonzales Rose, 2017), local samples can better capture that variation. Future research could examine how variations in jury instructions delivered by local judges shape interpretations of proof, thereby enhancing ecological validity and providing jurisdiction-specific insights.

Conclusion

This study examined how jury-eligible individuals, sampled to be representative of key sociodemographics, interpret standards of proof, with particular attention to the underexplored “preponderance of the evidence.” Unlike prior research that relied on student or localized samples, this approach offers broader insights into public perceptions of jury decision making. Consistent with theoretical expectations, the findings show that White and Black respondents hold different qualitative and quantitative understandings of key legal standards, with a public preference for justice that does not hinge on any one group’s subjective definition of proof.

Beyond shaping trial outcomes, this study highlights how jury composition influences the public’s confidence in the justice system. An American courtroom that has been historically – and continues to be – structured as a White space undermines the ideal of juries as representative bodies of one’s peers, while racial diversity offers a counterweight. For White individuals, racially diverse juries may signal procedural legitimacy, while for Black individuals, they may help counteract longstanding mistrust in the legal system. Juries, particularly when racially diverse, are viewed as more accountable to peers than courts, which function as institutional bodies, making jury composition especially salient to perceptions of fairness and legitimacy.

Appendix A: Variable Coding

Age – continuous, respondent’s age

Gender – binary, 0 = man; 1 = woman

Race – nominal, White; Black; Hispanic; Asian; Other

Education – continuous, 0 = did not graduate from high school; 1 = high school graduate/GED; 2 = some college, but no degree (yet); 3 = 2-year college degree; 4 = 4-year college degree; 5 = postgraduate degree; 6 = doctorate

Income – continuous, 0 = Less than 10,001 - 20,001 - \$30,000; 3 = 40,000; 4 = 50,000; 5 = 60,000; 6 = 70,000; 7 = 80,000; 8 = 90,000; 9 = 100,000; 10 = \$10,001 - 150,001

Partisan Identification – nominal, Democrat; Independent; Republican; leaners coded as partisans

Political Ideology – continuous 10-point scale, 0 = very liberal to 10 = very conservative

Appendix B: Descriptive Statistics

Table 6 Descriptive Statistics – Independent Variables

Table 3: Descriptive Statistics – Independent Variables					
Variable	Min	Median	Mean	Max	SD
Age	18	46	46.25	88	16.10
Education	0	3	2.56	4	0.94
Income	0	6	6.06	11	3.38
Political Ideology	0	5	4.75	10	3.00
Variable	White	Black	Hispanic	Asian	Other
Race	71.54%	15.85%	3.98%	5.81%	2.82%
Variable	Dem	Ind	Rep		
Party ID	37.10%	27.88%	35.02%		
Variable	Men	Women			
Gender	49.12%	50.88%			

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Data Availability Code and datasets generated during and/or analyzed during the current study are available from the corresponding upon reasonable request.

Declarations

Ethics Approval The questionnaire and methodology for this study were approved by the Institutional Review Board of Sam Houston State University (#2024-96). Informed consent was obtained from all individual participants included in the study.

Competing Interests The authors have no relevant financial or non-financial interests to disclose.

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References

- Alexander, M. (2010). *The new Jim Crow: Mass incarceration in the Age of Colorblindness*. New. American Experience (2003). *Murder at Harvard: A brutal murder, a sensational trial — and a lingering mystery*. Retrieved May 22, 2025, from <https://www.pbs.org/wgbh/americanexperience/films/murder/>
- Anwar, S., Bayer, P., & Hjalmarsson, R. (2012). The impact of jury race in criminal trials. *The Quarterly Journal of Economics*, 127(2), 1017–1055. <https://doi.org/10.1093/qje/qjs014>
- Astrada, M. L., & Astrada, S. B. (2017). Law, continuity and change: Revisiting the reasonable person within the demographic, sociocultural and political realities of the twenty-first century. *Rutgers Journal of Law & Public Policy*, 14(2), 196–227.
- Batson v. Kentucky*, 476 U.S. 79 (1986). <https://supreme.justia.com/cases/federal/us/476/79/>
- Bergold, A. N., & Kovera, M. B. (2022). Diversity's impact on the quality of deliberations. *Personality and Social Psychology Bulletin*, 48(9), 1406–1420. <https://doi.org/10.1177/01461672211040960>
- Bibas, S. (2004). Plea Bargaining Outside the Shadow of Trial. *Harvard Law Review*, 117(8), 2463–2547. <https://doi.org/10.2139/ssrn.464880>
- Bibas, S. (2012). *The machinery of criminal justice*. Oxford University Press.
- Bibas, S. (2016). Designing plea bargaining from the ground up: Accuracy and fairness without trials as backstops. *William & Mary Law Review*, 57(4), 1055–1081.
- Bonilla-Silva, E. (2022). *Racism without racists: Color-blind racism and the persistence of racial inequality in America* (6th ed.). Rowman & Littlefield.
- Bornstein, B. H., & Greene, E. (2011). Jury decision making: Implications for and from psychology. *Current Directions in Psychological Science*, 20(1), 63–67. <https://doi.org/10.1177/0963721410397282>
- Bornstein, B. H., Golding, J. M., Neuschatz, J., Kimbrough, C., Reed, K., Magyarics, C., & Luecht, K. (2017). Mock juror sampling issues in jury simulation research: A meta-analysis. *Law and Human Behavior*, 41(1), 13–28. <https://doi.org/10.1037/lhb0000223>
- Braman, D. (2010). Cultural cognition and the reasonable person. *Lewis & Clark Law Review*, 14(4), 1455–1480.
- Braman, D., & Kahan, D. M. (2009). Legal realism as psychological and cultural (not political) realism. In A. Sarat, L. Douglas, & M. M. Umphrey (Eds.), *How law knows* (pp. 93–125). Stanford University Press.
- Cage v. Louisiana*, 498 U.S. 39 (1990). <https://supreme.justia.com/cases/federal/us/498/39/>
- Carlin, A. (2016). The courtroom as white space: Racial performance as noncredibility. *UCLA Law Review*, 63(2), 449–484.
- Commonwealth v. Webster*, 59 Mass. 295. (1850). <http://masscases.com/cases/sjc/59/59mass295.html>
- Crenshaw, K. (1991). Mapping the margins: Intersectionality, identity politics, and violence against women of color. *Stanford Law Review*, 43(6), 1241–1299. <http://www.jstor.org/stable/1229039>
- Crenshaw, K. W. (2011). Twenty years of Critical Race Theory: Looking back to move forward commentary. *Connecticut Law Review*, 43(5), 1253–1353.
- Crenshaw, K. W., Gotanda, N., Peller, G., & Thomas, K. (Eds.). (1995). *Critical Race Theory: The key writings that formed the movement*. New.
- Davis, A. Y. (2003). *Are prisons obsolete?* Seven Stories.
- Delgado, R., & Stefancic, J. (1993). Critical Race Theory: An annotated bibliography. *Virginia Law Review*, 79(2), 461–516. <https://doi.org/10.2307/1073418>
- Dhami, M. K. (2008). On measuring quantitative interpretations of reasonable doubt. *Journal of Experimental Psychology*, 14(4), 353–363. <https://doi.org/10.1037/a0013344>
- Ellis, L., & Diamond, S. S. (2003). Race, diversity, and jury composition: Battering and bolstering legitimacy. *Chicago-Kent Law Review*, 78(3), 1033–1058.
- Farrell, A., Pennington, L., & Cronin, S. (2013). Juror perceptions of the legitimacy of legal authorities and decision making in criminal cases. *Law & Social Inquiry*, 38(4), 773–802. <https://doi.org/10.1111/j.1747-4469.2012.01323.x>
- Flowers v. Mississippi*, 588 U.S. (2019). https://www.supremecourt.gov/opinions/18pdf/17-9572_k536.pdf
- Flowers v. Mississippi*, 136 S. Ct. 2157 (2016). https://scholar.google.com/scholar_case?case=7326202079166579360
- Frampton, T. W. (2023). The first black jurors and the integration of the American jury. *New York University Law Review*, 99(2), 515–577.

- Fukurai, H., & Davies, D. (1997). Affirmative action in jury selection: Racially representative juries, racial quotas, and affirmative juries of the Hennepin Model and the jury de medietate linguae. *Virginia Journal of Social Policy & the Law*, 4(3), 645–682.
- Garvey, S. P., Hannaford-Agor, P., Hans, V. P., Mott, N. L., Munsterman, G. T., & Wells, M. T. (2004). Juror first votes in criminal trials. *Journal of Empirical Legal Studies*, 1(2), 371–398. <https://doi.org/10.1111/j.1740-1461.2004.00011.x>
- Gonzales Rose, J. B. (2017). Toward a critical race theory of evidence. *Minnesota Law Review*, 101(6), 2243–2312.
- Hakstian, A., Evett, S. R., Hoffmann, J. S., Marshall, J. M., Boyland, E. A. L., & Williams, J. D. (2022). Racial diversity and group decision making in a mock jury experiment. *Journal of Empirical Legal Studies*, 19(4), 1253–1292. <https://doi.org/10.1111/jels.12335>
- Hannaford-Agor, P., Bell, B., & Moffett, M. (2024). 2023 State-of-the-states survey of jury improvement efforts: Civil jury trials. National Center for State Courts. https://www.ncsc-jurystudies.org/_data/assets/pdf_file/0023/105566/2023-SOS_CivilTrials-FINAL.pdf
- Hemmens, C., Scarborough, K. E., & Del Carmen, R. V. (1997). Grave doubts about reasonable doubt: Confusion in state and federal courts. *Journal of Criminal Justice*, 25(3), 231–254. [https://doi.org/10.1016/S0047-2352\(97\)00008-1](https://doi.org/10.1016/S0047-2352(97)00008-1)
- Horowitz, I. A., & Kirkpatrick, L. C. (1996). A concept in search of a definition: The effects of reasonable doubt instructions on certainty of guilt standards and jury verdicts. *Law and Human Behavior*, 20(6), 655–670. <https://doi.org/10.1007/BF01499236>
- In re Winship*, 397 U.S. 358 (1970). <https://supreme.justia.com/cases/federal/us/397/358/>
- Jackson, C., & Lohr, A. A. (2023). Topline and methodology. *Ipsos Public Opinion Research*, 1–13. <https://www.ipsos.com/sites/default/files/ct/news/documents/2023-08/Jury%20Service%20Survey%20and%20Legal%20System%20Topline%2008%2028%202023.pdf>
- Kagehiro, D. K., & Stanton, W. C. (1985). Legal vs. quantified definitions of standards of proof. *Law and Human Behavior*, 9(2), 159–178. <https://doi.org/10.1007/BF01067049>
- Kahan, D. M. (2012). Handbook of risk theory. In S. Roeser, R. Hillerbrand, P. Sandin, & M. Peterson (Eds.), *Cultural cognition as a conception of the cultural theory of risk* (pp. 725–759). Dordrecht. https://doi.org/10.1007/978-94-007-1433-5_28
- Kahan, D. M., Hoffman, D. A., & Braman, D. (2009). Whose eyes are you going to believe? *Scott v. Harris* and the perils of cognitive illiberalism. *Harvard Law Review*, 122(3), 837–906.
- Lynch, M., & Laguna, S. (2025). Police talk in the jury room: the production of race-conscious reasonable doubt among racially diverse jury groups. *Law & Society Review*, 59(2), 419–448. <https://doi.org/10.1017/lsr.2024.26>
- Marinakakis, C., & Kansky, J. (2025). *Pattern voir dire questions: Civil and criminal* (Rev. ed., Vol. 8). James Publishing, Inc.
- National Center for State Courts (2024). *State of the state courts: 2024 poll*. <https://www.ncsc.org/sites/default/files/media/document/State-of-the-State-Courts-2024.pdf>
- Newman, J. O. (2019). Taking beyond a reasonable doubt seriously. *Judicature*, 103(2), 33–41. <https://judicature.duke.edu/articles/taking-beyond-a-reasonable-doubt-seriously/>
- Norris v. Alabama*, 294 U.S. 587 (1935). <https://supreme.justia.com/cases/federal/us/294/587/>
- Peters v. Kiff*, 407 U.S. 493 (1972). <https://supreme.justia.com/cases/federal/us/407/493/>
- Powers v. Ohio*, 499 U.S. 400 (1991). <https://supreme.justia.com/cases/federal/us/499/400/>
- Pyo, J. (2024). Mock jurors' conservative ideology and punitiveness: The role of criminal justice orientations. *Journal of Crime and Justice*, 48(4), 512–532. <https://doi.org/10.1080/0735648X.2024.2389383>
- Saxton, B. (1998). How well do jurors understand jury instructions? A field test using real juries and real trials in Wyoming. *Land and Water Law Review*, 33(1), 59–190.
- Scurich, N., & John, R. S. (2017). Jurors' presumption of innocence. *Journal of Legal Studies*, 46(1), 187–206. <https://doi.org/10.1086/690450>
- Simon, R. J. (1970). Beyond a reasonable doubt – An experimental attempt at quantification. *The Journal of Applied Behavioral Science*, 6(2), 203–209. <https://doi.org/10.1177/002188637000600205>
- Simon, R. J., & Mahan, L. (1971). Quantifying burdens of proof: A view from the bench, the jury, and the classroom. *Law & Society Review*, 5(3), 319–330. <https://doi.org/10.2307/3052837>
- Sommers, S. R., & Ellsworth, P. C. (2000). Race in the courtroom: Perceptions of guilt and dispositional attributions. *Personality and Social Psychology Bulletin*, 26(11), 1367–1379. <https://doi.org/10.1177/0146167200263005>

- St. Louis, S., & Petersen, N. (2024). Political ideology and attitudes toward pretrial justice: Exploring the mediating role of racial resentment. *Justice Quarterly*, 42(2), 263–286. <https://doi.org/10.1080/07418825.2024.2361719>
- Stevenson, M. C., Lytle, B. L., Baumholser, B. J., & McCracken, E. W. (2017). Racially diverse juries promote self-monitoring efforts during jury deliberation. *Translational Issues in Psychological Science*, 3(2), 187–201. <https://doi.org/10.1037/tps0000113>
- Strauder v. West Virginia*, 100 U.S. 303 (1880). <https://supreme.justia.com/cases/federal/us/100/303/>
- Swain v. Alabama*, 380 U.S. 202 (1965). <https://supreme.justia.com/cases/federal/us/380/202/>
- Taylor v. Louisiana*, 419 U.S. 522 (1975). <https://supreme.justia.com/cases/federal/us/419/522/>
- Tonry, M. (1995). *Malign neglect: Race, crime, and punishment in America*. Oxford University Press.
- Victor v. Nebraska*, 511 U.S. 1 (1994). <https://supreme.justia.com/cases/federal/us/511/1/>
- White, L. T., & Cicchini, M. D. (2019). Is reasonable doubt self-defining? *Villanova Law Review*, 64(1), 1–24.
- Woody, W. D., & Greene, E. (2012). Jurors' use of standards of proof in decisions about punitive damages. *Behavioral Sciences and the Law*, 30(6), 856–872. <https://doi.org/10.1002/bsl.2027>

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Michael A. Hansen is a Professor of Political Science and Head of the Department of Philosophy, Contemporary History and Political Science at the University of Turku, Finland. He publishes broadly on political attitudes and behavior in the U.S. and Europe.

John C. Navarro is an Associate Professor in the Department of Criminal Justice and Criminology at Sam Houston State University. Their research examines how public opinion, social identities, and organizational and community contexts influence criminal justice attitudes, policies, and outcomes.